

Court No. - 37

Case :- WRIT - C No. - 15954 of 2012

Petitioner :- Jaipal Singh

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Suneel Rai

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Pankaj Naqvi, J.

Shri Suneel Rai, learned counsel appearing for the petitioner states, that his objections have not been decided to the provisional assessment before initiating recovery, and that in any case he has been paying the bills regularly. The last bill dated 14.12.2011 for actual consumption of 389 units dated 30.11.2011 has also been paid by him. The charge under Section 138 is of re-connection, which is not supported by the allegations in the first information report.

Shri Pankaj Kumar Shukla, learned counsel appearing for the electricity department will seek instructions in the matter.

Put up on **9.4.2012** in the additional cause list.

Order Date :- 2.4.2012

RKP

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As prayed, put up on Thursday in the additional cause list.

Order Date :- 9.4.2012

SP/

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Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Suneel Rai

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Pankaj Naqvi, J.

We have heard Shri Suneel Rai, learned counsel appearing for the petitioner. Shri Pankaj Kumar Shukla appears for the electricity department.

On 2.4.2012, we passed following orders:-

"Shri Suneel Rai, learned counsel appearing for the petitioner states, that his objections have not been decided to the provisional assessment before initiating recovery, and that in any case he has been paying the bills regularly. The last bill dated 14.12.2011 for actual consumption of 389 units dated 30.11.2011 has also been paid by him. The charge under Section 138 is of re-connection, which is not supported by the allegations in the first information report.

Shri Pankaj Kumar Shukla, learned counsel appearing for the electricity department will seek instructions in the matter.

Put up on 9.4.2012 in the additional cause list."

Shri Pankaj Kumar Shukla, learned counsel appearing for the electricity department has produced a notice under Section 126 (3) and has relied upon the note put at the bottom of the notice, that if no reply is received, the notice shall be treated to be a final assessment.

In several decisions of this Court, it has been held that the note appended to the notice does not serve the requirement of Section 126 (3) of the Electricity Act. The Executive Engineer is required to record findings, whether the notice was served and he is thereafter required to consider the objections, if the objection has been filed to the provisional assessment. In either case a final assessment order has to be passed before initiating a recovery of the amount assessed in accordance with the U.P. Electricity Supply Code, 2005.

In the present case, it is admitted that no final assessment order has been passed and the demand notice under the Electricity Dues

Recovery Act has not been issued as yet.

In the circumstances, we **dispose of** the writ petition with directions, that the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd, Electricity Distribution Division-III, 33/11 K.V. Upkendra, Sector-16, Noida will pass a final order of assessment after considering petitioner's objections dated 7.6.2011. The petitioner will file a fresh copy of the objection dated 7.6.2011 along with the certified copy of this order before the Executive Engineer-respondent no. 3 within a week. The recovery, if any, will be initiated only after passing the final order and which may be subject to appeal at the option of the petitioner.

Order Date :- 12.4.2012

RKP